

Northgate Talent Partners LLC

www.northgatetalent.com

February 25, 2016

Michael Martin
Chief Operating Officer
Coleman Ltd

Dear Mr. Martin,

This letter confirms that you have retained Northgate Talent Partners to conduct a search for a Vice President of Engineering, and sets out the terms on which we will do the work. I have written it the way I would want it written for me: short where it can be, precise where it has to be. If any of it does not match what we agreed on the phone, say so before you sign rather than after. A search that begins with two different understandings of the assignment ends badly, and it ends badly late.

Scope of the Engagement

We will conduct a retained search for a Vice President of Engineering reporting to you. The engagement is with Coleman Ltd and commences on March 6, 2016. It is exclusive for its duration. We will not present candidates for this role on behalf of any other party, and we ask in return that candidates reaching you through other channels, whether a referral from a director or someone who applies to you directly, be routed to us before you engage with them. That is not a fee protection point. It is that one team has to hold every conversation, or the market hears two versions of your story and believes the worse one.

How We Will Work

The opening weeks are specification and mapping. We will interview you and the people the role touches, agree a written position specification, and build a map of the companies where this profile actually lives. Nothing is sourced against a document you have not signed. We then bring you a small set of anonymized profiles for calibration, which exists so that we can be wrong early and cheaply about what you want, rather than late and expensively. Approaches and first conversations follow. When we have a slate we can defend, you meet it. References come after you have met people, not before, because a reference call is a favor spent and we do not spend it on a candidate you would not hire. We stay in it through the offer and through the resignation the candidate has to give, which is the part clients most often underestimate.

Your Team

Jeffrey Patterson, Research Consultant, leads the day-to-day work and writes the position specification and the market map. James Grant, Senior Consultant, carries the client and candidate relationships; he is the one who will call you when there is something to say that should not wait for a written report, and he is the one who will keep a nervous finalist at the table. John Chang, Research Associate, builds and maintains the sourcing list. I remain accountable for the engagement. If it drifts, you will hear that from me, and you will hear it in the second sentence.

Fees and Payment

Our fee for this engagement is \$105,000. It is fixed. It does not move with the compensation of the person you hire, and it does not move if the search runs long. We invoice it in three equal installments: the first on commencement, the second thirty days after, the third sixty days after. Invoices are payable within thirty days of receipt. Reasonable out-of-pocket expenses, meaning candidate travel we arrange at your request and our own travel beyond the local market, are billed at cost against receipts. We will not incur any single expense above a threshold you set at kickoff without asking you first.

Term and Termination

The engagement runs from March 6, 2016 until the search concludes, meaning the person we place starts work or you tell us the role is closed. Either of us may terminate on fifteen days' written notice. If you terminate, you owe the installments invoiced to that date and nothing further; we will not bill work in progress against a search you have stopped. If we terminate, which happens when we conclude we cannot serve the assignment honestly, we refund any installment covering work we did not do. For twelve months following a placement, we will not approach the person we place, or any employee of Coleman Ltd, on behalf of another client.

Confidentiality

This runs both directions. What you tell us about the company, the team, the reason the seat is open, and what you pay is confidential and stays inside the engagement team named above. In the other direction, candidate information is confidential to you and to the people you name as part of the process. This matters more in search than clients expect it to. Most of the people worth talking to are employed, are doing well, and take a real risk by taking our call. We describe candidates by their current role rather than by name in anything that circulates, and we ask you to hold candidate material to the same standard. Please tell us at kickoff who inside the company will see it, and tell us again if that list grows.

Limitation of Liability

We will conduct the search with the care and skill of a professional firm, and we will verify what candidates tell us about their history to the extent references and the public record allow. We cannot warrant a hire. The decision to make an offer is yours, and the performance of the person you hire is a matter of your management as much as of our selection. Our aggregate liability arising out of this engagement is limited to the fees actually paid to us under it, and neither of us is liable to the other for indirect or consequential loss. If the person we place resigns or is terminated for cause within twelve months of starting, we will conduct one replacement search at no additional fee, expenses excepted. That replacement search is your sole remedy on the placement.

Governing Law

This letter is governed by the laws of the state in which the firm maintains its principal office, and both of us submit to the courts of that state for any dispute arising out of it. If a dispute does arise, we would rather sit down with you first. Neither of us will file anything until we have tried that in a room, once, in person.

If this reflects our agreement, please sign below and return one copy for our file. Jeffrey Patterson will be in touch within the first week to schedule the intake interviews. Thank you for the trust. We do not take a retained assignment we do not believe we can complete, and we believe we can complete this one.

Kelly Chavez

Managing Director

Date: February 25, 2016

Michael Martin

Chief Operating Officer, Coleman Ltd

Date: February 25, 2016